

COMPLAINT AND REQUEST FOR INVESTIGATION

To: Tennessee Division of Consumer Affairs
Office of the Tennessee Attorney General
P.O. Box 20207
Nashville, TN 37202-0207

From: Jay Puckett, Principal Security Researcher
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Re: Deceptive marketing of 7-hydroxymitragynine (7-OH) products as natural botanical supplements, under the Tennessee Consumer Protection Act of 1977, Tenn. Code Ann. §§ 47-18-101 et seq.

A parallel complaint on the same facts has been filed with the Federal Trade Commission under Section 5 of the FTC Act.

SUMMARY

We request that the Commission investigate the marketing of concentrated 7-hydroxymitragynine products, which are sold to consumers as natural botanical supplements while the federal government's own scientific assessment finds them to be synthetically produced by chemical conversion.

The sellers know. On at least one seller's own website, the product page advertises "botanical supplementation" while a separate help-center page on the same domain concedes the products "can be habit-forming" and that "long-term use may lead to addiction and withdrawal symptoms."

Obsidian Watch Group is an independent investigative organization. We have no financial interest in kratom, 7-OH, or any company named here, and no funding from any party. We are not seeking damages and represent no claimant.

0. WHY THIS IS A TENNESSEE MATTER

The complainant is a Tennessee resident. The products described in this complaint are sold across Tennessee in gas stations, convenience stores and smoke shops, beside the register, without age verification in many locations and without a pharmacist, a prescription or a label that names what the buyer is taking.

The Tennessee Consumer Protection Act prohibits unfair or deceptive acts or practices affecting the conduct of any trade or commerce. Under it, the Division of Consumer Affairs and the Attorney General may require a business to file a written statement under oath, examine any person under oath in connection with an alleged violation, and examine the products themselves. We ask the Division to use those powers here.

We note that this complaint does not depend on any question of federal drug scheduling, which is being handled elsewhere and on which we take no position in this

filing. It rests on what Tennessee buyers are told at the point of sale against what the sellers themselves say they know.

1. THE PRODUCT

7-hydroxymitragynine is an opioid. FDA states it "demonstrates substantially greater mu-opioid receptor potency" than morphine and "produces respiratory depression, physical dependence, and withdrawal symptoms characteristic of classical opioids, such as morphine, fentanyl, oxycodone, and hydrocodone."

The specific product examined here, Limitless Black Edition 7-Hydroxymitragynine Tablets, is labeled at 50 mg of 7-OH per tablet, 500 mg per ten-count bottle, with a labeled serving size of one quarter tablet, that is 12.5 mg.

2. THE REPRESENTATION IS FALSE ON THE GOVERNMENT'S OWN FINDING

The products are marketed with the vocabulary of botanicals. From the captured product pages:

"Experience the ultimate in botanical supplementation with LIMITLESS BLACK EDITION 7-Hydroxymitragynine Tablets."

-- 7ohplus.com, captured 2026-08-27

sha256 784b9fa6fcf89b06020a738622879789fe1b7d6843e95428add286e9fddec6fc

"a powerful botanical extract" ... "masking the natural bitterness of alkaloids"

-- pureleafkratom.com, captured 2026-08-27

sha256 803bc090846b44983509e228c5e054640dbc61863fd3eb770c00f1f22a22e913

FDA's assessment, "7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat," states:

"The enhanced amount of 7-OH in these products is likely synthetically derived through oxidate chemical conversion of mitragynine isolates or kratom extracts. Given the trace amounts of 7-OH that are naturally present in kratom, direct extraction of 7-OH from plant material would simply be unfeasible economically."

The manufacturing route is not in dispute. It is patented. United States Patents 12,492,201 B1 and 12,466,830, both titled "Method of converting mitragynine to 7-hydroxymitragynine," describe oxidation processes using Fenton's Reagent and oxone monopersulfate yielding at least 95 percent purity.

The industry itself characterizes these products as synthetic when it suits a different purpose. Sheldon Bradshaw, formerly FDA Chief Counsel, testifying for the trade group Botanicals for Better Health and Wellness before Ohio legislators, described 7-OH as "a synthetic drug" produced by "bad actors" who expose alkaloids to "harsh, toxic agents."

A compound manufactured by performing a patented chemical oxidation on a purified isolate is not a botanical supplement, and the parties selling it are aware of that.

3. THE SELLERS DISCLOSE THE RISK WHERE BUYERS WILL NOT SEE IT

On 7ohplus.com, the product page carries the "botanical supplementation" language quoted above. A help-center entry on the same domain, under the heading "Is 7OH safe?", states:

"While 7OH and kratom are often considered safe for healthy adults when used responsibly, it's essential to understand the potential risks. Kratom contains compounds that can be habit-forming. Long-term use may lead to addiction and withdrawal symptoms."

Both were captured from the same domain on the same day and are preserved with hashes. The seller possesses the material information and places it away from the point of purchase.

We submit that this is a material omission under Section 5. A reasonable consumer choosing among wellness products would consider a risk of addiction and withdrawal material to the decision, and would not expect to locate it in a help-center article.

4. DOSAGE PRESENTATION

The unit sold is a 50 mg tablet. The labeled serving is one quarter of that tablet, 12.5 mg. The product is dispensed, priced and consumed as tablets. Where a single unit contains four labeled servings of an opioid more potent than morphine, the Commission may wish to consider whether the serving-size presentation is likely to mislead.

5. FREE SAMPLE DISTRIBUTION

Independent reporting describes concentrated 7-OH being distributed as free samples to existing purchasers of leaf kratom, including persons in recovery from opioid use, with dependence following within weeks. We have not independently verified this practice and flag it as reported rather than established. If substantiated, a practice of providing an opioid at no cost to a population in recovery, at the point of sale of a different product, warrants the Commission's attention on its own.

6. CONSUMER HARM IN THE GOVERNMENT'S OWN RECORDS

FDA's CFSAN Adverse Event Reporting System contains 879 reports naming kratom products. CAERS is voluntary, unverified, and does not establish causation. With that stated: 276 reports record a death, 239 a hospitalization, 135 a disability. The most frequently reported reaction after death is dependence, at 256 reports, followed by withdrawal syndrome at 98.

Four reports name Limitless 7-OH products specifically, two of them Black Edition. Recorded outcomes include three "Other Serious or Important Medical Event" and one Disability. Reported reactions include withdrawal syndrome, restless legs syndrome, hyperhidrosis, insomnia, anxiety and dehydration. Ages reported: 23, 37, 56, 69.

We note that FDA issued warning letters to seven firms marketing 7-OH products on 15 July 2025. Limitless was not among them.

7. WHO THE HARM FALLS ON

The Commission may wish to note where the removals land.

A purchaser who knows the product is an opioid, knows the serving size, has a physician, can afford treatment and has stable housing can extricate himself, with difficulty. We have documented one such case: three weeks, 6,000 mg, and a prescribed course of buprenorphine.

A purchaser who has been told the product is botanical supplementation, who has not seen the habit-forming disclosure because it sits on a different page, who has no available appointment and no coverage, and who does not recognise opioid withdrawal when it begins, has one immediately available intervention. It is to buy more of the product.

Every element of that difference is a marketing decision rather than a pharmacological one. The compound is the same. What changes is what the buyer was told, and where.

8. PRECEDENT IN THIS SECTOR

The theory has already succeeded once. In re Botanic Tonics Litigation, No. 3:23-cv-01460-VC (N.D. Cal.), settled for \$8,750,000 on allegations that a kratom product was marketed without disclosing its kratom content or its addictive potential.

REQUESTED ACTION

1. Investigate whether describing chemically converted 7-hydroxymitragynine as "botanical supplementation," "botanical extract" or equivalent constitutes a deceptive representation under Section 5.
2. Investigate whether placing addiction and withdrawal disclosures outside the point of purchase, while the product page carries wellness framing, constitutes a material omission.
3. Investigate the reported practice of distributing free 7-OH samples to purchasers of other kratom products.
4. Consider a consumer alert for Tennessee. The Georgia Attorney General issued one on 13 November 2025 describing these products as "Dangerous Synthetic Opioids Flooding Gas Stations." Tennessee consumers currently have no equivalent notice, and the products are on shelves here today.
5. Consider coordination with the Federal Trade Commission, with FDA, which has issued warning letters in this category, and with the Georgia Attorney General's office, which has already examined this product class.

EVIDENCE AVAILABLE

Captured web pages with SHA-256 hashes and capture timestamps, the FDA scientific assessment, the two patents, adverse event extracts, and the underlying case file are available on request and published at: [github.com/jpuckett11/](https://github.com/jpuckett11/ObsidianGroup_CaseSevenfold)
ObsidianGroup_CaseSevenfold

Respectfully submitted,

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